

SERVICE AGREEMENT

This Service Agreement ("Agreement") is entered into on January 1, 2026, between TechNova Solutions Pvt. Ltd. ("Service Provider") and ABC Retail Pvt. Ltd. ("Client").

1. PURPOSE

The Service Provider agrees to provide software development and maintenance services to the Client for the development of a custom inventory management system.

1. TERM

This Agreement shall commence on January 1, 2026, and shall remain in effect until December 31, 2026, unless terminated earlier in accordance with this Agreement.

1. PAYMENT TERMS

The Client shall pay the Service Provider a total fee of INR 12,00,000. Payments shall be made in monthly installments of INR 1,00,000, payable within 15 days of invoice receipt.

Late payments shall incur interest at a rate of 2% per month on the outstanding amount.

1. CONFIDENTIALITY

Both parties agree to maintain the confidentiality of all proprietary, technical, financial, and business information disclosed during the term of this Agreement.

Neither party shall disclose confidential information to any third party without prior written consent from the other party, except where required by law.

The confidentiality obligations shall survive for a period of three (3) years following termination of this Agreement.

1. INTELLECTUAL PROPERTY

All software, source code, documentation, and deliverables developed under this Agreement shall become the exclusive property of the Client upon full payment of all fees due under this Agreement.

The Service Provider retains ownership of any pre-existing intellectual property and development tools used during the project.

1. WARRANTIES

The Service Provider warrants that the services shall be performed in a professional and workmanlike manner.

Except as expressly stated in this Agreement, no other warranties, express or implied, are provided.

1. LIMITATION OF LIABILITY

In no event shall either party be liable for indirect, incidental, special, or consequential damages arising out of or related to this Agreement.

The total liability of either party shall not exceed the total amount paid under this Agreement.

1. TERMINATION

Either party may terminate this Agreement by providing thirty (30) days written notice to the other party.

Either party may terminate this Agreement immediately if the other party materially breaches any provision of this Agreement and fails to cure such breach within fifteen (15) days of receiving written notice.

Upon termination, the Client shall pay for all services rendered up to the termination date.

1. GOVERNING LAW

This Agreement shall be governed by and construed in accordance with the laws of India.

Any disputes arising under this Agreement shall be subject to the exclusive jurisdiction of the courts located in New Delhi, India.

1. FORCE MAJEURE

Neither party shall be liable for delays or failures in performance caused by events beyond their reasonable control, including natural disasters, war, government actions, or labor disputes.

1. ENTIRE AGREEMENT

This Agreement constitutes the entire agreement between the parties and supersedes all prior discussions, negotiations, and understandings.

IN WITNESS WHEREOF, the parties have executed this Agreement on the date first written above.

Service Provider: TechNova Solutions Pvt. Ltd.

Client: ABC Retail Pvt. Ltd.